SER KANG WEI (XU KANGWEI)
and
LUCENT TRADING LIMITED
versus
YONG KHONG YOONG MARK
and
EMILY HWANG MEI CHEN

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE, 6 February & 8 April 2026

Chamber Application

M.D. Hungwe, for the Applicants
A. Mandizvidza, for the Respondents

WAMAMBO J: This is a chamber application for registration of a foreign judgment that is brought by the applicants in terms of the Common Law of Zimbabwe. The application was opposed. In the application, the applicants seek an order for the registration of a court order/ judgment emanating from the High Court of Singapore granted in their favour and against the respondents and one other party who was not cited herein, namely Salas Porras Carlos Luis (hereinafter Salas).

The first applicant is a male adult Singaporean who is a director and sole shareholder of the second applicant, a company incorporated in the British Virgin Islands. The second applicant is the first applicant's investment vehicle.

The first and second respondents are both also Singaporean nationals and further to that are husband and wife. The two respondents are permanent residents of Zimbabwe with business interests herein. It was contented by the two applicants and was not disputed by either of the respondents that on the basis of the foregoing, this court enjoyed jurisdiction of the two respondents.

The respondents raised a single preliminary point.

The preliminary objection they raised was that of non-joinder of a necessary party, it being contented that the other person against whom the judgment applicants seek registered in this application, Salas was a necessary party and that his non-joinder was fatal to the application, and it ought to fail on that basis.

At the hearing of this matter, it was submitted by both legal practitioners that it would be expedient and convenient that the parties proceed to present arguments on both the preliminary point and on the merits. As a result, I heard arguments on both the preliminary point and on the merits.

I deal briefly with this preliminary point.

It is common cause that Salas was not joined as a party to the present proceedings. Respondents' contention as I understood it was to the effect that the none-citation of Salas was fatal to the application as it amounted to applicants seeking to amend a foreign order in as far as the order emanating out of the Singapore High Court related to the two respondents herein and Salas. Respondents submitted that such non-joinder was fatal to the application.

On the other hand, applicants countered to the effect that the High Court Rules, 2021 resolve this matter as they state in clear and unambiguous terms that non-joinder of a party does not defeat an application and is therefore not fatal. They further submitted that the said Salas being a foreign national who is not resident in Zimbabwe, and with no known proprietary interests in Zimbabwe, this court had no jurisdiction over him and also that the court would have no means of effecting any order that it may grant against him thus rendering any judgment that may be attained against him ineffectual.

The applicants referred this court to the provisions of Rule 32 subrules (11) and (12) of the High Court Rules 2021, which provide as follows;

> (11) No cause or matter shall be defeated by reason of the misjoinder of non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.
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> (12) At any stage of the proceedings in any cause or matter the court may on such terms as it thinks just and either on its own initiative or on application-

(a) order any person who has been improperly or unnecessarily made a party or who for any reason ceased to be a proper or necessary party, to cease to be a party;

(b) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be efficiently and completely determined and adjudicated upon, to be added as a party:

Provided that no person shall be added as a plaintiff without his or her signed written consent or in such other manner as may be authorized.

The aforesaid rule is clear and unambiguous, and thus the words therein must be given their ordinary grammatical meaning.

Firstly, I cannot reconcile myself with the submissions by the respondents that the seeking of registration of the foreign court order/or judgment without joining Salas amounts to an amendment of the foreign order or judgment for the simple reason that whilst applicants obtained the order against the respondents and Salas, it is illogical for anyone to expect that all three parties would have property interests in similar jurisdictions only. The foreign order in my view must be read to apply to each defendant's peculiar circumstances, and to apply to jurisdictions where such defendant holds proprietary interests. This does not in my view alter or amend the foreign order in any way.

Secondly, this court has on previous occasions had the opportunity to interpret the similarly worded provisions of Rule 87 of the High Court Rules 1971, (the former Rules), which interpretation still applies in equal force to the provisions of Rule 32 aforesaid, as the said provisions are similar in all material respects. I see no reason why I should depart from such previously taken position. In *Wakatama and Others* v *Madamombe 2011* (1) ZLR 10 wherein the Court interpreted Rule 87 of the former rules and found that the non-joinder of a party is not fatal to a cause or suit. This court per GARWE JA (as he then was) stated as follows at page 14;

> "The question whether the non-joinder of the Minister is fatal need not detain this court and can easily be disposed of by reference to r 87 of the High Court Rules which provides:
>
> > 1. No cause or matter shall be defeated by reason of the misjoinder of non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.

> 2. At any stage of the proceedings in any cause or matter the court may on such terms as it thinks just and either on its own initiative or on application-
>
> (a) ……
>
> (b) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be efficiently and completely determined and adjudicated upon, to be added as a party."

but no person…

> The above provision is clear and allows of no ambiguity. The non-citation of the Minister is not in the circumstances fatal Indeed this court restated this position in the recent decision in Gula Ndebele vs Bhunu No. S 29 – 11 ."

I agree with the reasoning above. Rule 32 just like its predecessor Rule 87 is clear and unambiguous and is disposive of the matter. I make a finding therefore that the non-joinder of Salas to the present proceedings is not fatal to the present application. More so when regard is had to the fact that Rule 32 provides that a party who is aggrieved with the non-joinder of a party it feels is necessary to the proceedings, may apply for the joining of the said party to the proceedings.

In finding as I do above, I am fortified by the findings of this court in the judgment of *Sithole & Ors* v *Estate late Farida Hettena & Ors* HH 409/23. In *casu*, respondents, whilst of the strong view that Salas should have been joined to the present proceedings, and that his non-joinder would be prejudicial to them, still nonetheless did not avail themselves of the remedy provided for in Rule 32 (12). Such is the course of action they should have taken.

As a result of the foregoing, I therefore dismiss the preliminary point.

Having disposed of the preliminary point, I now turn to deal with the merits of the matter before me.

From the pleadings filed of record, I perceive only a single issue which this court ought to determine, whose resolution disposes of the present matter. I see the single issue for determination to be;

i) Whether or not the application before me meets the necessary requirements for registration of a foreign order or judgment.

The present application is bought in terms of the Common Law. On the question of whether or not an application for registration of a foreign order or judgment can be brought in terms of the common law, I will relate to the South African judgment in the matter of *Purser v Sales; Purser and Another* v *Sales and Another* **2001 (3) SA 445 (SCA) at para 11**, wherein it was stated as follows;

> "[However, as was said in Reiss Engineering Co Ltd v Insamcor (Pty) Ltd 1983 (1) SA 1033 (T), the fact that the English Court had jurisdiction in terms of its own laws does not entitle its judgment to be recognised and enforced in this country. (At 1037H). Corbett CJ puts the position thus in Jones v Krok [1994] ZASCA 177; 1995 (1) SA 677 (A) at 685B-E:
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> "As is explained in Joubert (ed) The Law of South Africa vol 2 (first reissue) para 476, the present position in South Africa is that a foreign judgment is not directly enforceable, but constitutes a cause of action and will be enforced by our Courts provided (i) that the court which pronounced the judgment had jurisdiction to entertain the case according to the principles recognised by our law with reference to the jurisdiction of foreign courts (sometimes referred to as 'international jurisdiction or competence'); (ii) that the judgment is final and conclusive in its effect and has not become superannuated; (iii) that the recognition and enforcement of the judgment by our Courts would not be contrary to public policy; (iv) that the judgment was not obtained by fraudulent means; (v) that the judgment does not involve the enforcement of a penal or revenue law of the foreign State; and (vi) that enforcement of the judgment is not precluded by the provisions of the Protection of Business Act 99 of 1978, as amended.."

With the exception of the sixth requirement enunciated *in Purser* v *Sales* (supra), the above appears to be the general position of our law in Zimbabwe regarding registration and enforcement of foreign judgment. *See Tiiso Holdings (Pvt) Ltd* v *Zimbabwe Iron & Steel Company* HH 95/10, which judgment was cited as authority of this position by both counsel. I agree with its findings and find that the judgment states the correction position of the common law in Zimbabwe regards the subject at hand. It was held as follows at page 2;

> "Under the common law, the general requirements for the recognition and enforcement of foreign judgments may be summarized as follows:
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> (i) the foreign court in question had the requisite international jurisdiction or competence according to our law;
> (ii) the judgment concerned was final and has the effect of res judicata according to the law of the forum in which it was pronounced;
> (iii) the judgment must not have been obtained by fraudulent means;
> (iv) it must not entail the enforcement of a penal or revenue law of the foreign State;
> (v) it must not be contrary to public policy in this country; and
> (vi) the foreign court must have observed the minimum procedural standards of justice in arriving at the judgment."

It is against the backdrop of the requirements enumerated above, that the judgment which forms the basis of the present proceedings must be measured to determine if all the requirements for its registration for enforcement purposes in Zimbabwe have been met. From the submissions filed of record, and even in oral argument, it appears that the respondents concede that the judgment in question tick all the boxes, except for one, which they take issue with, i.e, the finality of the judgment.

It is now a trite position of the law in this jurisdiction that, that which is not disputed is taken to be admitted. By virtue of this simple rule, I find that respondents concede that the application meets all the common law requirements for an application for registration of a foreign judgment which they have not taken any issue with, and will thus move to determine this point with regards the one outstanding requirement, namely, whether or not the judgment in question is final as contemplated by the common law of Zimbabwe.

The applicants highlight that they applied for and obtained a court order from the High Court of Singapore as against the respondents and Salas on 21 July 2025, which order is attached to the founding affidavit as Annexure SKW2. This particular order standing alone poses no major obstacles, as applicants concede, (rightfully so) that it was interlocutory in nature. It follows therefore that standing alone, the order of 21 July 2025 does not meet the threshold of a final order as contemplated by the Common Law.

The court order of 21 July 2025, is what is commonly known as a Mareva Injunction. It made provision to the effect that it would remain operational 'until the trial or further order', and further provided that, the respondents and Salas, if so, minded could approach the High Court of Singapore at any time to vary or discharge the said order. It was contented on behalf of the applicants, and was not disputed by the respondents that respondents herein, did avail themselves of this latter remedy and made an application for the discharge of the order of the 21st of July 2025 aforesaid, and in contradistinction, the applicants sought confirmation of the aforesaid order, leading to a judgment dismissing the application by the respondents herein and confirming the order of the 21st of July 2025. The judgment was delivered on the 19th of December 2025 and was attached to applicants' founding affidavit as Annexure SKW3.

Applicants' contention as I understood it was that the order of 21 July 2025 when construed in light of the judgment of 19 December 2025 became final in nature and effect, and further that these two must be read together and not in isolation. On the other hand, I understood respondents' argument to be that by virtue of SKW2 being what is commonly known as a Mareva Injunction, it remains interlocutory at all times notwithstanding the judgment SKW3 which dismissed their application to set aside SKW2 and confirmed SKW2.

Applicants place reliance of SKW3 and further on SKW4, being an order granted by the High Court of Singapore, authorizing the applicants to approach this jurisdiction and two others and thereat seek the registration and enforcement of SKW2 as read with SKW3. Applicants further argue that the finality of the judgment in question is further buttressed by the fact that respondents, in their opposing affidavits indicated that they had since made a approach to the Supreme Court of Singapore for leave to appeal SKW3, which on its own was indicating that the matter had run its full cycle within the High Court of Singapore and the remedies for anyone aggrieved with same now lay elsewhere. In this case the Supreme Court of Singapore, and thus upon confirmation through SKW3, SKW2 had become a final order in effect.

I agree with the applicants and therefore find that the order of 21 July 2025 when read together with the judgment of 19 December 2025, confirming the prior order renders the order of 21 July 2025 final and definitive in effect.

I am fortified by the findings in a judgment that was cited to by the applicants in their heads of argument, that of *South Cape Corp v Engineering Management Services* 1977 (3) SA 534 (A) at page 480, wherein upon commenting on the nature of interlocutory orders it was stated as follows;

> "In a wide and general sense, the term 'interlocutory' refers to all orders pronounced by the court, upon matters incidental to the main dispute, preparatory to, or during the progress of, the litigation. But orders of this kind are divided into two classes(i) those which have a final and definitive effect on the main action; and (ii) those known as simple (or purely) interlocutory orders' or 'interlocutory orders proper', which do not."

In the present case, the judgment of the 19th of December 2025 is a product of detailed submissions by the parties on the merits of the injunction and is final and definitive in as far as that subject matter relates to the parties herein, who were the protagonists in the Singapore High Court. Whilst the order of 21 July was a temporary injunction, which was the subject of either

confirmation or discharge, it has since been confirmed by the judgment of 19 December 2025, and has thus become what is commonly known as a final injunction as it no longer has any return date and is no longer in jeopardy of cancellation at the instance of the respondents as it was prior to 19 December 2025.

I am fortified by findings in the judgment of the Supreme Court also cited in applicants' heads of argument, per MALABA DCJ (as he then was), in the case of *Blue Rangers Estates (Pvt) ltd* v *Muduvuri and Anor* 2009 (1) ZLR 368 (S) at pages 376 G-H and 377 D-F wherein the Learned Judge emphasized that the answer as to whether or not a judgment or order is final lay, not in the nature of the order but in its effect. I associate myself with this reasoning. The court stated as follows ;

> "To determine the matter one has to look at the nature of the order and its effect on the issues or cause of action between the parties and not its form. An order is final and definitive because it has the effect of final determination on the issue between the parties in respect of which relief is sought from the court……..
>
> The finding of the fact in issue was a final and definitive determination of the fact in question. There would have been no other final determination of the issue of spoliation on the return day……..
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> The fact that the order was in the form of an interim relief is irrelevant to the consideration of the question whether it is final or interlocutory. The issue of an order in the form in which it was applied for does not make the order itself a provisional order."

The cause of action between the two parties in the proceedings leading up to the granting of SKW2 and SKW3 relates to the issue of a Mareva Injunction, which cause of action was effectively and definitively concluded on 19 December 2025 culminating in the confirmation of the 21 July order. In as far as the grant, variation or discharge of the Mareva Injunction in question is concerned, the matter has become res judicata and hence I make a finding that the order sought to be registered herein by the applicants if final in nature and effect, notwithstanding its form.

In the circumstances, I find that the applicants have managed to meet the Common Law threshold for the registration of a foreign court order/and or judgment and I will grant the application as prayed for. To that end;

IT IS HEREBY ORDERED AS FOLLOWS:

1. The chamber application for registration of a foreign court order is granted.

2. The order issued by the High Court of Singapore on 21 July 2025 under case number HC/545/2025 subcase number HC/SUM 1957/2025 and duly confirmed by the High Court of Singapore on 19 December 2025 be and is hereby registered as an order of this Court

3. The respondents shall pay the applicants' costs jointly and severally the one paying the other to be absolved

WAMAMBO J:……

MD Hungwe Attorneys, applicants' legal practitioners
Masiya-Sheshe & Associates, respondents' legal practitioners